

1.

CASE #	CASE NAME	HEARING NAME
CVPS2303732	WINSTEAD VS 7-ELEVEN, INC., A TEXAS CORPORATION	MOTION FOR SUMMARY JUDGMENT ON COMPLAINT OF ALYSSA WINSTEAD, AN INDIVIDUAL

Tentative Ruling: No tentative ruling. A hearing shall be conducted regarding continued date for the Motion for Summary Judgment.

The Court currently lacks the documents filed in opposition to this motion. On 6/24/26, Plaintiff filed a late opposition. However, most of the documents filed in opposition were rejected. The only document that was filed was the memorandum of points and authorities. As such the Court has no evidence or Plaintiff's separate statement to review. These documents are addressed in the reply by Defendant.

In Plaintiff's memorandum of points and authorities in opposition to this motion, she asks for a continuance under CCP § 437c(h). Under this provision, "[i]f it appears from the affidavits submitted in opposition to a motion for summary judgment or summary adjudication, or both, that facts essential to justify opposition may exist but cannot, for reasons stated, be presented, the court shall deny the motion, order a continuance to permit affidavits to be obtained or discovery to be had, or make any other order as may be just." To establish a continuance under CCP § 437c(h), Plaintiff must show that facts essential to support their opposition exist. (*Insalaco v. Hope Lutheran Church of West Contra Costa County* (2020) 49 Cal.App.5th 506, 518.) When an attorney "states with particularity the necessary discovery, 'the policy favoring disposition on the merits outweighs the competing policy favoring judicial efficiency'" and a continuance is required. (*Id.* at 520.) A continuance is virtually mandated when the requisite showing is made. (*Id.* at 517.) Continuances are to be liberally granted. (*Hamilton v. Orange County Sheriff's Depart.* (2017) 8 Cal.App.5th 759, 765.) In determining whether to continue a motion for summary judgment to allow for additional discovery, the court should consider various facts that include, how long the case has been pending, how much time the party had to oppose the motion, whether a continuance can be made earlier, the proximity to trial, prior continuances for this same reason, and whether the evidence sought is essential to the motion. (*Id.*) However, delay alone is not sufficient to deny a motion where there is a showing of specific discovery that is necessary to oppose the motion. (*Id.* at 766; *Insalaco, supra*, 49 Cal.App.5th at 518.)

Plaintiff's counsel's declaration is not currently before the Court because it was rejected. However, in her opposition Plaintiff does specifically identify the discovery she seeks – Umar Khan and Idali Martine Lozano's depositions and Yarana's records (policies, training materials, personnel records, incident reports, . . .).

Motion for Summary Judgment shall be continued to permit Plaintiff to file all prior documents associated with their Opposition submitted on 6.24.26 to be refiled with the court. Only those documents in Plaintiff's opposition served on Defendant Yarana shall be filed.

Plaintiff's counsel is directed to be prepared to address the court regarding the discovery identified in the Declaration of attorney Andrew M. Morrow and why that is necessary to continue the hearing pursuant to CCP 437c(h).

The Motion for Summary Judgment shall either be continued for the court to receive and review the associated Opposition documents or be continued further out for additional discovery and briefing.

CASE #	CASE NAME	HEARING NAME
CVPS2404465	HARB VS COHEN	MOTION TO BE RELIEVED AS COUNSEL FOR SI HARB

Tentative Ruling: No tentative ruling. Hearing is vacated.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2404465	HARB VS COHEN	MOTION TO BE RELIEVED AS COUNSEL FOR ROBERT REINER

Tentative Ruling: No tentative ruling. Hearing is vacated.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2404465	HARB VS COHEN	MOTION TO BE RELIEVED AS COUNSEL FOR GRANT ENTERTAINMENT, LLC, AN OHIO LIMITED LIABILITY COMPANY

Tentative Ruling: No tentative ruling. Hearing is vacated.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2406454	GUBIN VS MAJER	MOTION TO COMPEL PLAINTIFF AMY PENN'S FURTHER RESPONSE TO FORM INTERROGATORIES BY DENNIS N. WALSH TRUSTEE OF DENNIS N. WALSH REVOCABLE

Tentative Ruling: A party may file a motion compelling further answers to interrogatories and requests for production if it finds that the response is inadequate, incomplete, or evasive, or an objection in the response is without merit or too general. (Code Civ. Proc., §§ 2030.300, 2031.310.) Unless notice of the motion is given within 45 days of the service of the response, or any supplemental response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing, the propounding party waives any right to compel a further response. (*Id.* at §§ 2030.300(c), 2031.310(c).) On the merits, there are two distinct issues: (1) the impact of the default and (2) whether a cross-defendant can serve plaintiffs discovery.

On the former, a defendant in default has no rights in litigation until it moves to set aside the default or default judgment is entered. (*Devlin v. Kearny Mesa AMC/Jeep/Renault, Inc.* (1984) 155 Cal.App.3d 381, 385-386.) However, Walsh, individually, is only defaulted on the complaint—not the cross-complaint. Plaintiffs assert that Walsh individually and as trustee are the same, by citing to *Aulisio v. Bancroft* (2014)